Administrative Procedures for

Judge Jarred H. Patterson

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Civil – Hearing Time
General Procedures

1. Verify Judge J. Patterson is the judge assigned to the case.

2. DO NOT call the Judge's office to request hearing time.

3. Email any request for hearing time to Judge J. Patterson's assistant, Dani Dixon, and CC opposing counsel. These requests should be made via email to dixond@jud14.flcourts.org. Use Bay or Gulf County case number and style of case as your subject line.

4. Provide the following information in the hearing time request email:
    a. Type of motion(s) to be heard
    b. Actual amount of time needed for counsel to argue motion(s)
    c. First date movant is available for hearing (see #7 below)
    d. Names of attorneys that will attend hearing
    e. Attach copy of the motion(s) to the email

5. Please be as accurate as possible in the amount of time needed for the hearing. Failure to have sufficient time for the hearing may result in the motion or request being denied or the hearing continued.

6. The judicial assistant will "reply all" to the email with available dates, times and instructions. READ ENTIRE EMAIL. **Be aware that Bay County in the central time zone and Gulf County is in the eastern time zone.**

7. The judicial assistant will provide up to three (3) dates and times for a hearing. **IN THE EVENT COUNSEL CANNOT AGREE** on a mutually convenient date and time for the hearing from the dates and times provided, **the Court may unilaterally set the matter for hearing or alternatively enter an order on the matter without hearing.** If the Court unilaterally sets the matter for hearing, the hearing may not be canceled without a Court order. If the parties resolve the issue prior to the Court-Scheduled hearing, they shall submit an agreed upon proposed order more than one (1) business day prior to hearing date to avoid the requirement for appearance at the Court-scheduled hearing. Accordingly, to the extent possible, counsel should seek another attorney from their office to cover a hearing to avoid either having no choice in the date and time of a hearing or waiving a hearing on the matter.

8. Only email the judicial assistant to request dates and confirm the hearing date. DO NOT include the judicial assistant in email chains between counsel and/or staff to clear dates (or anything else).

9. If a *pro se* party is involved in the case, an attempt should be made to coordinate the hearing date and time with the *pro se* party. If counsel received no response to an initial attempt to

coordinate with the *pro se* party after two (2) business days, counsel may unilaterally set the hearing.

10. DO NOT file a notice of hearing before receiving a confirmation email from the judicial assistant confirming that the hearing has been set.

11. Email the judicial assistant a copy of all notices for hearing once filed.

12. Any motions noticed, but not specifically scheduled with the judicial assistant, will not be heard.

13. Additional motions may not be piggybacked on a previously scheduled hearing time without being cleared with the judicial assistant and opposing counsel, and such motions may only potentially be added if sufficient time has been reserved. To add a motion to a previously scheduled hearing, obtain opposing counsel's consent to the addition, then email the judicial assistant about adding the motion to the hearing **and advise if additional time is required.** The judicial assistant will confirm the addition of the motion to the hearing time. If additional time is required but not available, the request to piggyback a motion will be denied and the motion will need to be reset at a different date and time. Do not prepare and file a notice of the added motion until receipt of the judicial assistant's confirmation.

14. Address: Bay County: 300 E. 4th Street, Panama City, Florida 32401; Gulf County: 1000 Cecil G. Costin Sr, Blvd., Port St. Joe, Florida 32456. There are no room numbers – just list as Judge Jarred Patterson's Chambers.

15. The parties may stipulate to having a motion decided without the necessity of a hearing. If such is the case, the movant shall include at least a brief memorandum of law as part of the motion being filed or as a supplemental filing on the motion. Thereafter, the non-movant shall file a response within 10 days which shall include at least a brief memorandum of law as part of the response. Upon filing of the response, the movant's counsel shall contact the judicial assistant and advise that a non-hearing motion and response have been filed and provide copies of the filed motion and response. The Court shall consider the motion and response and issue a ruling.

Civil – Hearing Time Motion Calendar Docket

1. For short motion hearings (15 minutes or less), motion calendar docket will be maintained by the Court.

2. It is anticipated that counsel may set hearings on a motion calendar docket with one or two weeks of advanced notice.

3. Follow the procedures contained in the General Procedures on Page 2 (to include emailing the judicial assistant for available motion calendar dockets, clearing the hearing time with opposing counsel, confirming the date and providing a copy of the notice of hearing). Slots on each motion calendar docket <u>are limited.</u> Slots on a particular motion calendar docket will be given on a first come, <u>first confirmed basis.</u>

4. All matters set on the motion calendar docket should be noticed to start at 9:30am or 1:00pm (to coincide with each time zone).

5. The case/motion will be called in order that the motions are set for hearing.

6. The motion calendar is intended to hear short, simple motions on an expedited basis to keep a case moving (15-minute or less hearings). If extensive argument occurs, the hearing will be continued to a later time, to be set for a certain time under the General Procedures on page 2. Accordingly, DO NOT try to set a matter on the motion calendar that cannot be concluded withing 15 minutes as it will delay the conclusion of the hearing on the motion and annoy the other attorneys set for hearing on the motion calendar. If there is an abuse of the motion calendar docket by a particular attorney or law firm, it may result in the attorney/law firm not being able to set matters on the motion calendar in the future.

Civil – Good Faith Certification for Motions

1. For most motions (other than truly dispositive motions), the moving party is required to include a certification in the motion that the movant made a "good faith attempt" to resolve the issue(s) raised in the motion with the opposing counsel or party (whether represented or pro se) prior to filing the motion. This Court's requirement of conferral is broader than that included in Rule 1.202, Florida Rules of Civil Procedure.

2. A "good faith attempt" is not satisfied by the movant sending one or two emails to the opposing counsel or party if pro se and claiming no response was received. Movant may initiate the "good faith attempt" via email. However, if no response is received, the movant shall call the opposing counsel's office or party at least twice if no response is received to an email or initial phone call before certifying that the movant has made a "good faith attempt" to resolve the issue(s) raised in the motion.

3. The judicial assistant may reject offering hearing time if a motion does not include certification of a "good faith attempt" to resolve the issue(s) in the motion prior to filing the motion.

4. The only circumstances where a "good faith attempt" certification is not required is for dispositive motions (motions to dismiss with prejudice, motions for judgment on the pleadings, motions for summary judgment, etc.), emergency motions where the movant is not able to attempt contact because of the circumstances (however, delaying filing a motion that could be filed earlier is not considered an emergency just because the deadline is approaching), and post-trial or post-judgment motions (such as motions for rehearing or reconsideration). For motions to dismiss that raise primarily technical issues which, under applicable law would likely result in the pleading party being given leave to amend, the movant shall make a "good faith attempt" to resolve the issue(s) before filing the motion (e.g., where a party omits a copy of a contract or document from the complaint in an action for breach of contract).

Civil – Setting Trials

1. DO NOT request a case management conference (CMC) to set a case for trial, **unless:**
    a. Setting a jury trial that will take longer than one week
    b. The parties cannot agree on a trial date

    Multi-day non-jury trials may be set using the below procedures without the need for a CMC, unless the parties cannot agree on the dates for trial or the amount of time needed, in which case they must set a CMC to have the matter set for trial.

2. Be aware, unless specially set, jury trial dockets are one-week dockets.

3. If necessary, email a request to set a CMC to Judge J. Patterson's assistant, Dani Dixon, and CC opposing counsel. The request should be sent via email to dixond@jud14.flcourts.org.

4. Use Bay or Gulf County case number and style of case as your subject line.

5. Provide the following information in the trial request email:
    a. Attach a copy of the filed notice for trial, if done
    b. Specify whether it is a jury trial or non-jury trial
    c. If a jury trial – specify the number of days needed, exclusive of jury selection
    d. If non-jury trial – specify the amount of time needed. If more than one day, a case management conference is needed.

6. The judicial assistant will "reply all" to the email with available dates and instructions. READ ENTIRE EMAIL.

7. Only email the judicial assistant to set a CMC or confirm the trial date selected. DO NOT include the judicial assistant in email chains between counsel and/or staff to clear dates (or anything else).

8. Once the trial date is confirmed, Judge J. Patterson will enter an order setting trial and pretrial dates, including discovery, disclosure and mediation deadlines. If the parties need to adjust any of the deadlines contained in the order setting trial, such can be submitted by stipulated order and will be permitted if they do not appear to affect preparation for trial.

Civil – Zoom Instructions

1. Hearings may be held in person or by Zoom depending on the nature of the case, the Court's calendar and the length of the hearing. Appearance by Zoom or in person should be confirmed with Judge J. Patterson's judicial assistant.

2. Video Zoom connection information is as follows:

   https://zoom.us/j/5239087066

   Dial (for United States)

   +(312)626-6799

   Meeting ID: 523 908 7066

3. Include Zoom instructions, if applicable, above in any notices for hearing.

4. It is requested that all counsel and parties attending a Zoom hearing do so via video, unless video is impossible.

5. As a video Zoom conference hearing is a court proceeding, it is anticipated that any counsel or party that attends a hearing will be properly attired as if appearing in person in court.

6. So that hearings may promptly start, please log into the Zoom video conference at least five (5) minutes before the hearing start time. The judge will admit you to the hearing from the waiting room. DO NOT disconnect from Zoom just because you may not be admitted right at the hearing time.

7. So that Judge J. Patterson can identify which people in the waiting room are associated with a particular hearing, please set your Zoom user/screen name to your name or your firm's name (as opposed to a nickname or other phrase).

Civil – Submission of Proposed Orders

1. All proposed orders must be submitted via the 14th Judicial Circuit's e-filing portal.

2. All proposed orders must include a cover letter in .pdf format. The cover letter should indicate whether the proposed order is agreed to by the opposing counsel/party or not.

3. **Only the cover letter and proposed order** should be submitted via the e-filing portal. Copies of motions, responses, exhibits, case law, or other items should not be included with the cover letter or uploaded in the e-filing portal (see Submission of Hearing Materials, *infra*). The only exception to exclusion of other items pertains to the Pretrial Stipulated Order, in which case counsel shall either attach to the order or upload as a judicial exhibit the witness and exhibit lists to attach to the pretrial stip.

4. All proposed orders must be submitted in Word format.

5. All proposed orders must be in DJCMA format (see #6 & 7 below)

6. Proposed orders do not need to include the addresses or email addresses of recipients of the order at the end. A copy of the signed order will be served on all counsel/party registered for service via the e-portal.

7. If the case involves a *pro-se* party who is not registered to receive filings from the e-portal, the proposed order shall include as the last paragraph (before DONE AND ORDERED) the following statement:

   > Counsel who submitted this proposed order to the Court for approval is required to serve a copy of the signed order on any party not registered to receive service via the Court's e-portal.

   Counsel receiving the served copy of an order entered is then charged with responsibility for serving (via mail or email) a copy of the signed order on any party not registered to receive service via the e-portal. The judge's office will not mail out copies of any orders.

8. A memo with instructions on submission of proposed orders and the DJCMA format can be accessed at: Microsoft Word - Memo-Submission of Proposed Orders to Judiciary.doc

9. A video with instructions on submission of proposed orders and the DJCMA format can be accessed on the 14th Judicial Circuit website under Announcements & Notices at: https://jud14.flcourts.org/e-filing-proposed-orders

10. Any proposed order not complying with the above instructions will not be entered.

Civil – Submission of Hearing Materials (Pleadings, Memoranda, Exhibits, Case Law)

1. Any documents being used or relied upon at a hearing that a party would like the Court to review and consider must be submitted at least two (2) business days prior to the date of the hearing. This includes:
    a. Exhibits
    b. Memoranda not previously filed with the clerk
    c. Copies of case law, statutes, or other citations
    d. Any demonstrative aides
    e. Any other documentation that a party intends to use at the hearing

    However, additional copies of motions, memoranda already filed with the clerk or other documents which are already in the court file (unless attached to or incorporated in other filing and not easily accessible or identifiable) **DO NOT need to be submitted again** prior to the hearing.

2. In lieu of hard copies of hearing materials, all hearing materials should be submitted via Microsoft OneDrive drop box. **DO NOT MAIL HARD COPIES OR A BINDER OF CASE LAW OR OTHER HEARING MATERIALS** unless specifically directed by the judicial assistant. The procedures for obtaining the drop box are:
    a. Any counsel or party that desires to provide hearing materials shall contact the judicial assistant and request a OneDrive drop box for the case at least two (2) business days prior to the hearing. Please be sure to include the email addresses of <u>all parties/counsel</u> who require access. The judicial assistant will send out an email to all parties with a link to the drop box.
    b. Either the movant or party opposing the motion may submit documents to the drop box.
    c. Please label the documents submitted to the drop box so that they can be easily identified.
    d. Any case law or other items being submitted should be uploaded as separate .pdf documents.
    e. DO NOT upload documents as a zip file/folder as the Court will be unable to access them
    f. If documents being submitted include exhibits for an evidentiary hearing, please premark the exhibits and identify the party intending to introduce the exhibit. Counsel should agree on the method being used to identify the exhibits (such as one side using numbers and the opposing side using letters or using party ID before the number/letter.
    g. Respective counsels are responsible for redacting ALL confidential information on any document that will be offered into evidence.
    h. All uploaded documents must be completed one (1) business day prior to the hearing.
3. Use of the OneDrive drop box is the preferred method to submit materials to the Court in advance of a hearing. If it is impossible to use the drop box, materials may be submitted at least two (2) business days prior to the hearing.

4. DO NOT email copies of hearing documents to the judicial assistant.

Civil – Cancellations

1. In the event of the cancellation of a hearing, please notify the judicial assistant as promptly as possible to open the time for other cases.

2. In the event of a settlement or dismissal of a case set for trial, please notify the judicial assistant that the matter has settled or been dismissed so that it can be removed from the trial docket, even if there are still matters remaining to be concluded (filing dismissal, signing of agreed upon settlement agreement, exchange of payment, etc.). However, if a settlement is contingent upon the agreement to the form of an agreement and/or release, please wait until the language of the agreement and/or release is agreed to by all parties prior to requesting a matter be removed from the trial docket.

3. Notices to the judicial assistant of a cancellation, settlement or dismissal should be sent via email.

4. Upon receipt by the judicial assistant of the email canceling a hearing or notifying of a settlement or dismissal, the matter will be removed from the calendar. It is suggested that counsel file and serve a notice of cancellation of a hearing, and upon filing, send a copy via email to the judicial assistant.

5. Counsel and parties may not cancel a trial or hearing scheduled by Court Order by simply filing a notice of cancellation without obtaining approval of the Court.

Civil – Certification Regarding Standing Order And Administrative Procedures

1. Pursuant to the Standing Civil Case Management Order entered in most cases, counsel for all parties are required to file a certification that they have read and agree to abide by the Standing Order and these Administrative Procedures.

   The Certification shall be in substantially the following form:

   I, _____, on behalf of myself, my client and my firm, have read the Standing Civil Case Management Order entered in this case as well as the presiding Judge's Administrative Procedures found on the 14th Judicial Circuit's website and agree to abide by such requirements, procedures and deadlines. I understand that failure to comply with any of the requirements, procedures or deadlines may result in sanctions against me and/or my client, including, but not limited to, an award of attorney's fees and costs, denial of motions or hearing time, striking of pleadings, dismissal of claims, finding of contempt or other sanctions.

2. The Certification shall be filed by counsel or pro se parties pursuant to the time periods contained in the Standing Order entered in a case.

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